4.4 John Peter Zenger and Free Speech

Today, we expect talk show hosts to joke about politicians and criticize our government. We take for granted that people in the media are free to say what they want. That was not always the case in the colonies.

MAIN IDEA The trial of John Peter Zenger helped pave the way for freedom of the press.

LIBEL OR FREE SPEECH?

Under Great Britain's policy of salutary neglect, the colonists became used to determining what they could and couldn't do. In 1733 by British law, it was illegal to criticize the government in print. But **John Peter Zenger**, the publisher of the *New-York Weekly Journal,* did it anyway. In his newspaper, he printed a series of articles about the British colonial governor of New York, William Cosby. A few years before, Cosby had removed a judge who had ruled against him and then tried to rig, or tamper with the outcome of, an election.

Another person, a lawyer named James Alexander, wrote the articles, but his name didn't appear in the paper. Unable to determine the author, Cosby went after Zenger. Police arrested Zenger for **libel**, the publishing of lies, in November 1734. He remained in jail until his trial in August 1735.

Governor Cosby expected the trial to be an open and shut case. Any criticism of the government, true or not, was considered libel. The paper had definitely criticized the governor—there was no question about that—so as far as Cosby was concerned, the jury had to find Zenger guilty.



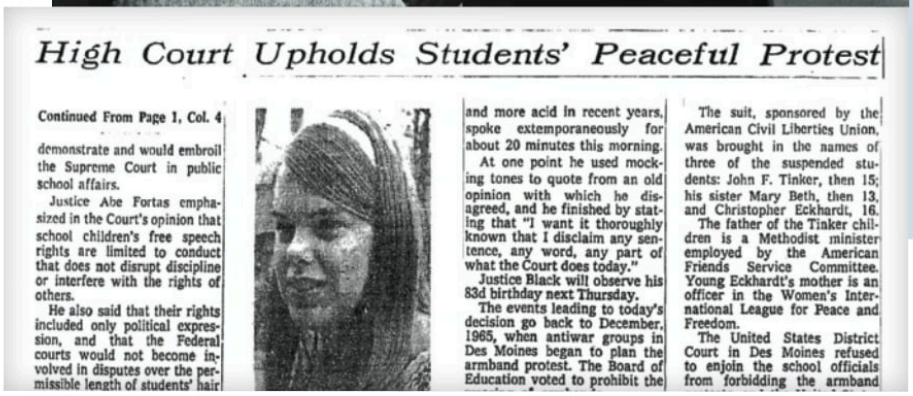
Andrew Hamilton, John Peter Zenger's lawyer, reasoned convincingly on Zenger's behalf. In this illustration from 1877, Hamilton makes his case before the judge.

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Free Speech Rights

Today, the U.S. Constitution protects almost all forms of free speech. In 1965 in Des Moines, Iowa, North High School suspended Mary Beth Tinker and her brother, John (shown here), for wearing armbands to mourn American soldiers who had been killed in the Vietnam War. They appealed, and the U.S. Supreme Court ruled that the right to free speech extends to students in school. The students were allowed to wear their armbands.



High Court Upholds Students' Peaceful Protest

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demonstrate and would embroil the Supreme Court in public school affairs.

Justice Abe Fortas emphasized in the Court's opinion that school children's free speech rights are limited to conduct that does not disrupt discipline or interfere with the rights of others.

He also said that their rights included only political expression, and that the Federal courts would not become involved in disputes over the permissible length of students' hair

and more acid in recent years, spoke extemporaneously for about 20 minutes this morning.

At one point he used mocking tones to quote from an old opinion with which he disagreed, and he finished by stating that "I want it thoroughly known that I disclaim any sentence, any word, any part of what the Court does today."

Justice Black will observe his 83d birthday next Thursday.

The events leading to today's decision go back to December, 1965, when antiwar groups in Des Moines began to plan the armband protest. The Board of Education voted to prohibit the

The suit, sponsored by the American Civil Liberties Union, was brought in the names of three of the suspended students: John F. Tinker, then 15; his sister Mary Beth, then 13, and Christopher Eckhardt, 16.

The father of the Tinker children is a Methodist minister employed by the American Friends Service Committee. Young Eckhardt's mother is an officer in the Women's International League for Peace and Freedom.

The United States District Court in Des Moines refused to enjoin the school officials from forbidding the armband

ZENGER CLEARED

Although he was confident of the outcome, Cosby didn't want to take any chances. He packed the jury with his own supporters. However, Zenger's wife Anna found out and revealed Cosby's misdeed in the *New-York Weekly Journal*, which she had continued to publish while her husband was in jail. The judge replaced Cosby's jury with a jury of colonists, but Zenger's problems continued. The judge dismissed Zenger's lawyers when they challenged the judge's authority. Meanwhile, Zenger's friends brought Andrew Hamilton, a famous Philadelphia lawyer, to take over the case.

Hamilton took a novel approach. He admitted that Zenger had printed articles criticizing Cosby. Hamilton argued, however, that the jury should consider the fact that the criticisms were true. Should Zenger be jailed for doing his job correctly as a newspaper publisher by printing the truth? Hamilton went on to argue that freedom of the press was especially important in the colonies because it acted as a check against the abuses of colonial governors. In his closing, Hamilton urged the jury to grant "that, to which Nature and the Laws of our Country have given us a Right, . . . both of exposing and opposing arbitrary Power . . . by speaking and writing Truth."

After a short time, the jury returned to the court with a verdict of not guilty, and Zenger was released. The victory paved the way to gaining freedom of the press. It also unified the colonists in their pursuit of their rights. But the colonists still considered themselves British citizens. Soon, they'd unite and join forces with Britain in war.

HISTORICAL THINKING

1. **READING CHECK** Why was John Peter Zenger charged with libel?
2. **IDENTIFY MAIN IDEAS AND DETAILS** Why did William Cosby assume that John Peter Zenger would be found guilty?
3. **SYNTHESIZE** How was the outcome of *Tinker* v. *Des Moines* similar to the outcome of Zenger's trial?

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